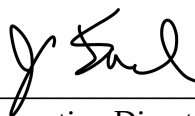


FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, May 18, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23775 against Police Officer Anthony Sclafani, Tax Registry No. 962789. The case was conferenced on May 2, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved a Command Discipline Schedule B with the negotiated penalty of a forfeiture of Ten (10) vacation days.

A handwritten signature in black ink, appearing to read "J. Adler", is positioned above a horizontal line.

Executive Director
New York City Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 21, 2023

Re: CCRB Case No. 202003834 (Incident Date: June 2, 2020) involving Police Officer Anthony Sclafani, Tax No. 962789 (DADS No. 2021-23775)

Dear Mr. Darche:

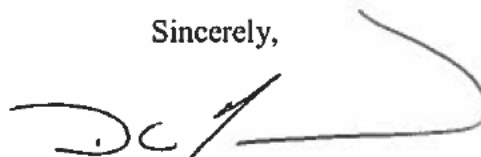
The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegation against Police Officer Anthony Sclafani and determined that the actions of Police Officer Sclafani do not warrant the imposition of the proposed penalty.

In this matter, Police Officer Sclafani along with other uniformed members of service responded to the looting of a Manhattan Department store during a time when the Mayor had implemented a citywide curfew. As the officers were dispersing a crowd, Police Officer Sclafani pushed an individual who was also a member of the press, and exempt from the curfew. While there was no injury to the individual, since he was a credentialed member of the press, he was permitted to record in the area. Therefore, Police Officer Sclafani's action was inappropriate. Throughout and after the push, however, the individual was continuously able to record the events without disruption. Therefore, it cannot be said that Police Officer Sclafani interfered with his use of a recording device.

Based on the totality of the circumstances, the Police Commissioner intends to dismiss the charges and specifications in this matter, and direct the issuance of a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days for the use of non-deadly physical force with

no injury. Furthermore, no disciplinary action will be imposed for the allegation that he interfered with the complainant's recording device.

Sincerely,

A handwritten signature in black ink, appearing to read 'A. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

December 27, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. PO Anthony Sclafani
Disciplinary Case No.: 2021-23775

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated December 21, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and take no disciplinary action against Police Officer Sclafani as to Specification Two (2). Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification. As to Specification One (1), the letter states that you agree with the findings and penalty recommendation of the CCRB but will direct the issuance of a Command Discipline Schedule A.

As to Specification Two (2), Deputy Chief Marino stated that you disagree with the findings that PO Sclafani interfered with § 87(2)(b) ability to record the scene since “throughout and after the push”, § 87(2)(b) was “continuously able to record the events without disruption”. CCRB disagrees with this determination. Specification Two (2) is captured on video footage provided by § 87(2)(b) to the CCRB. (202003834_20200705_1737_DMI.MP4). At 0:22 of the video’s timestamp, § 87(2)(b) is seen being shoved by PO Sclafani and being forced to leave the area. § 87(2)(b) is then seen attempting to leave the area as other officers continue to yell at him. At 00:25, § 87(2)(b) is heard stating that he is an essential worker and a member of the press, but officers are still heard telling § 87(2)(b) to get back and to leave the area. While § 87(2)(b) was able to record before and throughout the push, he was unable to remain in the area after the push thus interfering with his ability to record. NYPD Patrol Guide Procedure 203-29 states that individuals have a right to record police activity including, but not limited to, detentions, searches, arrests, or uses of force, provided that they have a legal right to be present at a particular location. In addition, the NYPD Finest Message specifically exempted members of the press from curfew

enforcement. Since § 87(2)(b) was a member of the press, he was exempt from the curfew and had a right to stay and record the scene. After PO Sclafani pushed him, § 87(2)(b) was forced to leave and could no longer remain in the area to record the scene.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested in the interest of justice that the Police Commissioner accept the plea agreement put forth by CCRB, and agreed to by PO Sclafani and his attorney, John Tynan, of the issuance of a Command Discipline Schedule B and forfeiture of ten (10) vacation days to cover both Specifications One (1) and Two (2).

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
NYC Civilian Complaint Review Board